

Law & Data — Collection of Open Questions

1. Please identify and illustrate three legal problems posed by social credit systems in no more than 150 words.

2. Please explain the main principles for personal data processing in no more than 200 words.

3. Please illustrate in no more than 100 words the EU personal data protection package adopted since 2016.

4. Please describe in no more than 250 words the 2020 European Data Strategy conceived by the European Union.

MUST INCLUDE:

- (a) The GDPR that paved the way to the 2020 European Data Strategy.
- (b) Aims of the EU Data Strategy: free flow of personal data, free flow of non-personal data, single market for data.
- (c) EU Data Strategy Package: Data Governance Act, Digital Services Act, Digital Markets Act, Artificial Intelligence Act, Data Act (a summarized description of their contents).

5. Please explain the so-called “Barbara Streisand Effect” in no more than 100 words.

MUST INCLUDE:

- (a) A brief summary of the facts of the case.
- (b) Description of the Effect: the protection of privacy through legal means can backfire and worsen the situation of the individual.
- (c) Takeaways:
 - the legal protection of privacy can consist in avoiding seeking legal protection;
 - the legal vindication of privacy is different—and sometimes opposite—from the social enjoyment of privacy.

6. Please describe any legal provision included in EU primary law sources setting out the right to personal data protection in max 250 words.

MUST INCLUDE:

- (a) Personal data protection in the TEU, starting from the values of the EU as protected by article 2 TEU and the protection thereof set out in article 3 TEU.
- (b) Personal data protection as set forth by article 16 TFEU.
- (c) The fundamental right to data protection in the Charter of Fundamental Rights (article 8 CFR) and possible reference to article 7 CFR on the right to privacy (and their differences).
- (d) Possible limitations of fundamental rights and, specifically, of the right to data protection in light of the safeguard clause (article 52 CFR)—the balancing of conflicting rights.

7. Please describe the structure of the “proportionality scrutiny” in no more than 200 words.

MUST INCLUDE:

- (a) Does the measure under scrutiny pursue a legitimate goal?
- (b) Is the measure concretely connected with the purported goal (the “rational connection” step—some courts omit it)?
- (c) Is the measure necessary to pursue that goal? (the “least restrictive means” step)
- (d) Are the benefits more than the sacrifices that the measure causes to the interests and rights that are involved?

8. Please explain what ‘personal data’ means according to the EU personal data protection legislation and the difference with sensitive personal data in no more than 200 words.

MUST INCLUDE:

- (a) Definition of personal data according to article 4(1) of the GDPR.
- (b) Definition of sensitive data, even involving article 9 GDPR.
- (c) Differences in the processing of personal data and sensitive personal data.
- (d) Lawful reasons for processing personal data and sensitive personal data with or without data subjects’ consent.
- (e) Possible references to the origins of the definition of personal data and sensitive personal data (Convention 108, OECD Guidelines).

9. Please describe which are the main rights recognized to a data subject by the GDPR in max 250 words.

MUST INCLUDE:

- (a) Right to access.
- (b) Right to data rectification.
- (c) Right to data erasure—right to be forgotten.
- (d) Right to processing restriction.
- (e) Right to data portability.
- (f) Right to limit the processing.
- (g) Right to object to data processing.
- (h) Right to lodge a complaint before the NSA.
- (i) Right to seek legal redress before Courts.

10. Why is the notion of synthetic data relevant in the field of privacy protection? How would you define synthetic data?

11. Please describe how the right to privacy evolved into the right to personal data protection in no more than 150 words.

12. Please describe a Data Protection Impact Assessment and its aims in no more than 150 words.

13. Please describe in no more than 150 words the difference between EU regulations and directives.

14. Please describe the main subjects involved in personal data processing activities and their rights and obligations according to the GDPR in no more than 200 words.

15. Please describe in no more than 150 words the legal status of EU regulations.

16. Please describe the differences of processing activities involving personal data and sensitive personal data in no more than 150 words.

17. Please describe the evolution of [personal] data protection legislation in the EU legal system in no more than 12 lines.

MUST INCLUDE:

- (a) Directive 95/46/EC (liability approach).
- (b) Nice Charter, articles 7 and 8.
- (c) Articles 2 and 3 of the TEU.
- (d) Article 16 of the TFEU.
- (e) Article 39 of the TEU.
- (f) Charter of Fundamental Rights, articles 7 and 8.
- (g) Shift to a compliance approach → GDPR.
- (h) Data Protection Package.
- (i) Reference to CoE (i.e. case-law).
- (j) Possible references to other EU directives and regulations.

(References to Convention 108 and Convention 108+, as well as to the OECD Guidelines or to the UN Declaration of Human Rights or the ECHR were useful, but did not directly concern the European Union legal system, rather belonging to different legal systems—respectively, CoE and OECD.)

18. Please describe the development of EU secondary law (from directives to regulations) of personal data and the reasons underlying said development in no more than 15 lines.

MUST INCLUDE:

- (a) Directive 95/46.
- (b) GDPR 2016/679.
- (c) Regulation 2018/1725.
- (d) Directive 2016/680 (on prevention, investigation, detection, prosecution of criminal offences).
- (e) EU Data Protection Package.
- (f) Using directives shifted to the use of regulations to ensure a compliance-oriented approach.
- (g) More harmonization within the EU (reason for the shift from directives to regulations).